

**IN THE HIGH COURT OF JUSTICE**

**KING'S BENCH DIVISION**

**ADMINISTRATIVE COURT**

**Claim No: AC-2025-LON-004293**

**Nadia Zahmoul**

**v**

**Secretary of State for Justice & HMCTS**

**URGENCY NOTE**

The Claimant respectfully requests urgent consideration of the attached Form N463 application.

Parallel proceedings are actively progressing in the High Court of Justice, Business & Property Courts of England and Wales, Chancery Division – Business List (Claim No: BL-2024-001217).

A hearing in those proceedings is listed for 12 March 2026.

Those proceedings engage issues of delay, promptness and procedural regularity and may proceed on assumptions regarding prior determinations that are directly in issue in this Judicial Review.

The present application seeks clarification as to whether any identifiable judicial act exists determining the matters pleaded in Grounds 1–5 of the claim.

If the Administrative Court does not clarify that question before the Chancery hearing proceeds, there is a real risk that parallel proceedings will proceed on implicit assumptions regarding determinations that may not exist.

This creates a risk of cross-court inconsistency and foreseeable prejudice.

The Claimant is a disabled court user, and the matters raised concern participation measures and related procedural protections.

For those reasons the Claimant respectfully requests that the Court consider the attached application urgently and in any event within 3 days.

# Judicial Review

## Application for urgent consideration

Name of court

High Court of Justice  
Administrative Court

Claim number

Fee account number

Help with fees reference number  
(if applicable)

H W F

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Name of claimant (including any reference)

Complete this form if your application is urgent – i.e. it must be considered within 7 days.

The claimant or the claimant's solicitors must serve this form on the defendant(s) and any interested parties, together with the **N461** judicial review claim form (if not already served).

Name of defendant

Interested parties

If you do not complete this form correctly, it may be rejected by the Administrative Court Office.

Date

Day

Month

Year

### To the Defendant(s) and Interested Party(ies)

**Representations in response** to this application may be made by any defendant or interested party, by email to the relevant Administrative Office. See details on last page.

**You must complete sections 1 to 5 and attach a draft order.**

## **Section 1 – Reasons for urgency**

## Section 2 – Justification for request for urgent consideration

**2.1** Date and time when it was first appreciated that an urgent application might be necessary.

Day

Month

Year

Time

**2.2** Please provide reasons for any delay in making the application.

**2.3** What efforts have been made to put the defendant and any interested party on notice of the application?

## Section 3 – Proposed timetable

**3.1** How quickly do you require the application (form **N463**) to be considered?

☐ **within 3 days**  
indicate in hours (eg. 2 hours, 24 hours etc.)

222 hours  
24

☐ **3 – 6 days**  
indicate in days (eg. 4 days, 6 days etc.)  
days

**Note 3:** This will determine the time within which your application is referred for consideration.

Applications which do not need to be considered within 7 days should be made using form **N244**.

**3.2** Please specify the nature and timeframe of consideration sought.

☐ **Interim relief** is sought and the application for such relief should be considered within  
days hours

☐ **Abridgement of time for AOS** is sought and should be considered within  
days hours

☐ **The N461 application for permission** should be considered within  
days hours

☐ **If permission for judicial review is granted**, a substantive hearing is sought by

| Day                  | Month                | Year                 |
|----------------------|----------------------|----------------------|
| <input type="text"/> | <input type="text"/> | <input type="text"/> |

☐ **Other interlocutory directions** are sought and the application should be considered within  
days hours

## **Section 4 – Grounds for Application**

- 4.1** Set out the factual and/or legal grounds relied on in support of your application

## **Section 5 – Interim relief/directions and draft order**

- 5.1** A draft order must be attached, which sets out the order the court is invited to make
- 5.2** State what interim relief and/or directions are sought and why



## Section 6 – Service

A copy of this form of application was served on the defendant(s) and interested parties as follows:

### Defendant

☐ by handing it to or leaving it with

☐ by e-mail to

Date served

Day

Month

Year

### Interested party

☐ by handing it to or leaving it with

☐ by e-mail to

Date served

Day

Month

Year

## Statement of truth

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☐ **I believe** that the facts stated in this form are true. I confirm that all relevant facts have been disclosed in this application.

☐ **The claimant** believes that the facts stated in this form are true, and confirms that all relevant facts have been disclosed in this application. **I am authorised** by the claimant to sign this statement.

### Signature

*Nadia Zahmoul*

☐ Claimant

☐ Litigation friend

☐ Claimant's legal representative (as defined by CPR 2.3(1))

### Date

Day

Month

Year

## What you do next

Send your completed form and draft order to the court where your case is proceeding:

### London

email: [immediates@administrativecourtoffice.justice.gov.uk](mailto:immediates@administrativecourtoffice.justice.gov.uk)

### Birmingham

email: [birmingham@administrativecourtoffice.justice.gov.uk](mailto:birmingham@administrativecourtoffice.justice.gov.uk)

### Cardiff

email: [cardiff@administrativecourtoffice.justice.gov.uk](mailto:cardiff@administrativecourtoffice.justice.gov.uk)

### Leeds

email: [leeds@administrativecourtoffice.justice.gov.uk](mailto:leeds@administrativecourtoffice.justice.gov.uk)

### Manchester

email: [manchester@administrativecourtoffice.justice.gov.uk](mailto:manchester@administrativecourtoffice.justice.gov.uk)

Find out how HM Courts and Tribunals Service uses personal information you give them when you fill in a form: <https://www.gov.uk/government/organisations/hm-courts-and-tribunals-service/about/personal-information-charter>

IN THE HIGH COURT OF JUSTICE  
KING'S BENCH DIVISION  
ADMINISTRATIVE COURT

Claim No: AC-2025-LON-004293

BETWEEN:

NADIA ZAHMOUL  
Claimant

-and-

THE SECRETARY OF STATE FOR JUSTICE  
HM COURTS & TRIBUNALS SERVICE  
Defendants

CONTINUATION SHEET  
Form N463 – Urgent Application

**CONTINUATION SHEET 1**  
Urgency and Request for Expedition

**A. Nature of this Application**

This application seeks clarification of whether any identifiable judicial act has determined the matters raised in this Judicial Review.

The Claimant applies for:

1. Identification of any judicial act said to determine the matters raised in this Judicial Review (judge, date, order and reasons).
2. If no such judicial act exists, directions confirming that the matters remain undetermined and giving a timetable or directions for their determination within these proceedings.

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CONTINUATION SHEET  
Form N463 – Urgent Application

3. Expedition of permission and/or directions before 12 March 2026 on safeguarding and procedural fairness grounds.

This is a binary application.

Either an identifiable determination exists and can be identified precisely, or it does not.

There is no intermediate category. There is no implied determination.

**B. Active Procedural Collision With Chancery Proceedings**

Parallel proceedings are now actively progressing in:

High Court of Justice  
Business & Property Courts of England & Wales  
Chancery Division – Business List (ChD)  
Claim No: BL-2024-001217

IN THE HIGH COURT OF JUSTICE  
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CONTINUATION SHEET  
Form N463 – Urgent Application

Those proceedings:

- Concern enforcement and set-aside issues;
- Proceed on procedural assumptions regarding prior determinations;
- Involve active listing and evidence exchange;
- Engage questions of delay, promptness, and procedural regularity.

If this Court does not determine whether an identifiable judicial act exists, the Chancery Division may proceed on implicit assumptions that such determinations were made.

That creates:

- Cross-court inconsistency;
- Structural incoherence;
- Risk of entrenched findings;
- Foreseeable prejudice.

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CONTINUATION SHEET  
Form N463 – Urgent Application

This is not speculative. It is operational.

The Administrative Court must clarify jurisdictional boundaries before parallel proceedings harden.

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CONTINUATION SHEET  
Form N463 – Urgent Application

**CONTINUATION SHEET 2**  
Grounds of Claim and Undetermined Matters

**C. The Pledged Grounds and the Undetermined Matters**

The claim is pleaded in five Grounds.

**Ground 1 - Administrative revocation / non-operation of court-ordered protective measures**

This Ground concerns two protective mechanisms that were live, court-ordered, and subsequently treated as ceased in practice without any identifiable judicial determination.

**a) Participation Measures (Part 3A)**

The Claimant is a disabled court user. Participation measures were identified and implemented during proceedings pursuant to Part 3A.

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CONTINUATION SHEET  
Form N463 – Urgent Application

Those participation measures were subsequently treated by court administration as having ceased without any judicial determination, order, or recorded reasons, and without notice or hearing.

**b) Maintenance Pending Suit (MPS)**

Payments due under a subsisting MPS order ceased in February 2024 and were not enforced in March–May 2024 despite repeated requests.

A remission paragraph was inserted into the final order dated 24 May 2024 without notice or hearing and without curing the prior period of non-enforcement.

**Undetermined matter within Ground 1 (binary)**

Has any identifiable judicial act determined the legality and/or lawful administrative basis for:

- treating participation measures as ceased or spent;
- failing to operate or enforce MPS;
- inserting retrospective remission without hearing?



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CONTINUATION SHEET  
Form N463 – Urgent Application

**Ground 2 - Absence of reasons and administrative audit trail**

Across multiple matters raised, there is no identifiable administrative decision, recorded reasons, or traceable handling.

**Undetermined matter within Ground 2 (binary)**

Has any identifiable judicial or administrative act determined:

- what administrative decisions were taken;
- by whom;
- when;
- and on what reasons?

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CONTINUATION SHEET  
Form N463 – Urgent Application

### **Ground 3 - Administrative non-handling of serious material (Oxus)**

The claim challenges the administrative and procedural handling of serious material placed before the court, including documentary material, sworn statements, contemporaneous correspondence, and a formal contempt application.

### **Undetermined matter within Ground 3 (binary)**

Despite the seriousness of the material, there is no identifiable administrative action, recorded decision, referral, audit trail, or reasoned response. Has any identifiable act determined:

- what administrative handling occurred (if any);
- why no recorded process exists?

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CONTINUATION SHEET  
Form N463 – Urgent Application

**Ground 4 - Administrative handling of Imerman devices**

The claim challenges prolonged inaction, lack of escalation, and absence of recorded administrative decision explaining inaction.

**Undetermined matter within Ground 4 (binary)**

Has any identifiable act determined:

- the administrative status of the devices;
- the handling process;
- the accountability trail?

**Ground 5 - Failure to consider cumulative impact**

Failure to consider the cumulative impact of repeated omissions and administrative inaction on participation and access to recourse.

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CONTINUATION SHEET  
Form N463 – Urgent Application

### **Undetermined matter within Ground 5 (binary)**

Has any identifiable act determined:

- the cumulative impact of the omissions;
- the lawfulness of the overall administrative handling?

### **Conclusion**

Across Grounds 1–5, the claim concerns administrative and procedural clarification at permission stage, including the continuing absence of any identifiable judicial act determining these matters.

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CONTINUATION SHEET  
Form N463 – Urgent Application

### **CONTINUATION SHEET 3**

#### **Procedural Collision With Parallel Proceedings**

Parallel proceedings are currently progressing in the High Court of Justice,  
Business & Property Courts of England and Wales,  
Chancery Division – Business List (Claim No: BL-2024-001217).

A hearing in those proceedings is listed for 12 March 2026.

Those proceedings engage issues of delay, promptness and procedural regularity and may therefore proceed on assumptions regarding prior determinations arising from the underlying litigation.

The matters raised in this Judicial Review concern the absence of any identifiable judicial act determining several issues formally raised by the Claimant, including participation measures under FPR Part 3A, Maintenance Pending Suit, and the administrative handling of material placed before the court.

IN THE HIGH COURT OF JUSTICE  
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Claim No: AC-2025-LON-004293

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CONTINUATION SHEET  
Form N463 – Urgent Application

If the Administrative Court does not clarify whether any such judicial determination exists, the Chancery proceedings may proceed on implicit assumptions that such determinations were made.

That creates a risk of cross-court inconsistency and foreseeable procedural prejudice.

The Claimant therefore respectfully requests that the Court consider the present N463 application urgently and, if appropriate, before the hearing listed on 12 March 2026.

## KEY ISSUE SUMMARY

This witness statement supports an urgent Form N463 application in Judicial Review claim AC-2025-LON-004293.

The application raises a single procedural question.

Either:

- an identifiable judicial act exists determining the matters raised in Grounds 1–5 of the claim (including judge, date, order and reasons),

or

- no such determination exists and the matters remain undetermined.

The Claimant has not been able to identify any such judicial act despite repeated applications and filings.

Parallel proceedings are currently progressing in the High Court of Justice, Business & Property Courts, Chancery Division – Business List (Claim No: BL-2024-001217).

A hearing in those proceedings is listed for 12 March 2026.

If the Administrative Court does not clarify whether any such determination exists before that hearing proceeds, the Chancery proceedings may proceed on implicit assumptions regarding prior determinations.

This creates a real risk of cross-court inconsistency and foreseeable prejudice.

For that reason, the Claimant respectfully requests urgent consideration of the N463 application.



# **WITNESS STATEMENT OF NADIA ZAHMOUL**

**in support of urgent N463 application**

**IN THE HIGH COURT OF JUSTICE**

**KING'S BENCH DIVISION**

**ADMINISTRATIVE COURT**

**Claim No: AC-2025-LON-004293**

**Between**

**Nadia Zahmoul**

**Claimant**

**and**

**Secretary of State for Justice & HMCTS**

**Defendants**

## **Witness Statement**

I, Nadia Zahmoul, the Claimant in these proceedings, state as follows.

### **1. Introduction**

1. This statement supports the Claimant's urgent application under Form N463 seeking directions and expedition in Judicial Review claim AC-2025-LON-004293.

2. The application asks the Court to clarify whether any identifiable judicial act (judge, date, order and reasons) exists determining the matters raised in the pleaded grounds of claim.
3. If no such act exists, the Claimant seeks directions confirming that the matters remain live and undetermined and providing a timetable for their determination.
4. The Claimant also seeks urgent consideration of the application due to parallel proceedings currently progressing in the Business & Property Courts of England and Wales, Chancery Division – Business List (Claim No: BL-2024-001217).
5. A hearing in those proceedings is listed for 12 March 2026.

## 2. Background to the Judicial Review

6. The Judicial Review challenges administrative acts and omissions arising during and after proceedings in the Family Division of the High Court.
7. The claim concerns matters which have been repeatedly raised before the courts but which have not been determined by any identifiable judicial act.
8. These include:
  - the administrative treatment of participation measures under FPR Part 3A
  - the operation and enforcement of Maintenance Pending Suit (MPS)
  - the administrative handling of OXUS-related material
  - the administrative handling of Imerman devices
  - the cumulative impact of repeated procedural omissions affecting the Claimant's participation.
9. The claim therefore raises a binary procedural question.

10. Either an identifiable judicial act exists determining these matters, or it does not.
11. If such an act exists it can be identified precisely (judge, date, order and reasons). If it does not, the matters remain undetermined and require directions.

### 3. Participation measures and procedural impact

12. During the trial proceedings the Court ordered extensive participation measures in recognition of the Claimant's autism and PTSD.
13. Those measures enabled the Claimant to participate in proceedings and were treated as necessary safeguards.
14. In February 2024 those measures were treated in practice as having ceased.
15. The Claimant is not aware of any order, hearing or recorded reasons determining that those measures should cease.
16. Following the cessation of those measures the Claimant experienced significant difficulty participating effectively in subsequent proceedings.
17. This is not a rhetorical point. The absence of functioning safeguards materially affected the Claimant's ability to process, respond to and comply with complex procedural demands.
18. The Claimant's position is that this had direct procedural consequences affecting her ability to respond to matters arising after trial.

#### 4. Litigation funding and subsequent claim

19. During the underlying litigation the Claimant obtained litigation funding in order to finance legal representation.
20. Following the cessation in practice of participation measures, the Claimant's ability to engage effectively with the procedural demands of the litigation deteriorated significantly.
21. Subsequently proceedings were issued against the Claimant in the Chancery Division (Claim No: BL-2024-001217) concerning liabilities arising from that litigation funding.
22. The Claimant disputes aspects of that liability and maintains that she has substantive defences available.
23. The Claimant's position is that her ability to properly defend those proceedings is closely connected to the procedural circumstances arising from the cessation of participation measures and the matters now raised in this Judicial Review.

#### 5. Parallel Chancery proceedings

24. Parallel proceedings are now progressing in the High Court of Justice, Business & Property Courts of England & Wales, Chancery Division – Business List.
25. Those proceedings are listed before the Court on 12 March 2026.
26. Those proceedings necessarily engage issues of delay, promptness and procedural regularity.
27. They may therefore proceed on assumptions regarding prior determinations arising from the underlying litigation.

28. Those matters overlap with the issues raised in this Judicial Review concerning the existence or absence of identifiable determinations.

29. If the Administrative Court does not clarify whether such determinations exist, the Chancery proceedings may proceed on implicit assumptions that such determinations were made.

30. This creates a real risk of:

- cross-court inconsistency
- structural incoherence between proceedings
- foreseeable procedural prejudice.

31. This risk is not speculative. The Chancery proceedings are actively progressing and involve procedural steps which may rely upon assumptions regarding prior determinations.

## 6. Absence of identifiable determinations

32. The Claimant has repeatedly requested identification of any judicial act determining the matters raised in the claim.

33. Despite extensive filings and applications, the Claimant has not been able to identify any order, judgment or recorded decision determining those matters.

34. The Claimant therefore seeks clarification from the Court as to whether any such determination exists.

## 7. Disability and safeguarding

35. The Claimant is an autistic litigant with diagnosed PTSD.
36. The Claimant has recently informed the Court that her health has deteriorated due to prolonged procedural uncertainty.
37. Medical evidence has been provided to the Court.
38. Prolonged procedural uncertainty is not neutral in its effect. The continued absence of procedural clarity has direct operational consequences for the Claimant's ability to understand the status of matters she has formally raised and to take appropriate procedural steps.
39. The Claimant respectfully submits that urgent procedural clarity is necessary in light of those safeguarding concerns.

## 8. Relief sought

40. The Claimant respectfully asks the Court to:
  - a) Identify any judicial act said to determine the matters raised in this Judicial Review (judge, date, order and reasons);
  - b) If none exists, confirm that the matters remain undetermined and provide directions for their determination;
  - c) Consider the application on an expedited basis, in light of the hearing listed on 12 March 2026.

## Statement of Truth

I believe that the facts stated in this witness statement are true.

Signed:

*Nadia Zahmoul*

Nadia Zahmoul

Dated: 4 March 2026

**IN THE HIGH COURT OF JUSTICE  
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**Claim No: AC-2025-LON-004293**

**BETWEEN:**

**NADIA ZAHMOUL**  
**Claimant**

**and**

**SECRETARY OF STATE FOR JUSTICE  
HM COURTS & TRIBUNALS SERVICE**  
**Defendants**

**DRAFT ORDER**

Upon consideration of the Claimant's Form N463 application

IT IS ORDERED THAT:

1. Within 7 days of this order the Defendants shall identify any judicial act relied upon as determining the matters pleaded in Grounds 1–5 of the claim, specifying the judge, date, order and reasons.



2. If no such judicial act exists, the Court shall give directions confirming that the matters remain undetermined and for the future conduct of the proceedings.
3. The application for permission and/or case management directions shall be considered urgently and in any event within 3 days.
4. Costs reserved.